



SPONSOR: Sen. Townsend & Rep. Harris & Rep. Minor-Brown

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 224

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO THE DEPARTMENT OF
CORRECTION'S REGULATORY AUTHORITY RELATED TO MODIFICATION OF SENTENCES OF
INCARCERATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 4217, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4217. Jurisdiction over sentence retained; sentence modification process.

4 (h) The Department ~~shall~~ may adopt regulations to implement this section. The Department may not impose
5 additional restrictions, exclusions, or eligibility requirements for persons seeking sentence modification under this section.

SYNOPSIS

Last session, the General Assembly enacted the Richard "Mouse" Smith Compassionate Release Act (Senate Substitute No. 1 for Senate Bill No. 10), which revised the process for sentence modifications.

This Act makes a change to that Act. Specifically, Senate Substitute No. 1 for Senate Bill No. 10 required the Department of Correction ("Department") to adopt regulations to implement the revised sentence modification process. The Department does not believe regulations are necessary for the Department to successfully implement the revised sentence modification process. Therefore, this Act authorizes the Department to adopt regulations, rather than requires it.

Author: Senator Townsend